

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOANNA GING,

Petitioner

VS.

BENSON HO,

Respondent

) Case Number: FDI-24-800588

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ENFORCE 11/19/25 FOAH, EARNINGS ASSIGNMENT ORDER, AND
SECTION 271 SANCTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Joanna Ging (Wife) and Respondent Benson Ho (Husband). They share
no minor children.
- 2) On February 17, 2026, Wife filed a Request for Order seeking the following orders:
 - a. Enforce the Findings and Order After Hearing filed November 19, 2025 and order
Husband to immediately pay all amounts of temporary spousal support and attorney's
fees owed, with statutory interest at a rate of 10% per annum.
 - b. In the alternative, the Court issue an earnings assignment order for collection of all
unpaid spousal support and attorney's fees as ordered in the Findings and Order After
Hearing filed on November 19, 2025, with statutory interest at a rate of 10% per annum.
 - c. Order that any amounts remaining unpaid at the conclusion of this divorce case, including
accrued interest, be charged against and paid from Husband's share of the community
property.

- d. Order Husband to pay \$5,000.00 in sanctions pursuant to Family Code section 271 for attorney fees and costs Wife incurred in bringing this motion as a direct result of Husband's failure to comply with this Court's prior orders, which has unnecessarily increased litigation costs and caused prejudice to Joanna.
- 3) On February 17, 2026, Wife filed a "Declaration of Attorney Charles A. Young in Support of Petitioner's Request for Order to Enforce the Findings and Order After Hearing filed 11/19/25, Request for Earnings Assignment Order and For Family Code Section 271 Sanctions," which has been read and considered by the Court.
- 4) On February 24, 2026, Wife filed a Proof of Electronic Service of the February 17, 2026 Request for Order. However, there is nothing in the Court's file that indicates Husband consented to electronic service. Even if Husband consented to electronic service, a "San Francisco Superior Court (Unified Family Court) Notice and Instructions for Remote Appearances, and SFUFC Tentative Ruling Instructions" were not served with the moving paperwork. See California Rules of Court, Rule 2.251.
- 5) Respondent did not file a Responsive Declaration.

B. Findings and Order

- 1) Petitioner is ordered to effectuate service by mail and directed to serve on Respondent all of the required documents along with her Request for Order (i.e., at least 20 calendar days prior to the next Court hearing, Petitioner shall file and serve on Respondent the (a) Request for Order, (b) Continuance Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure).
- 2) The matter is **continued to June 30, 2026 at 9:00 a.m., in Department 403** to allow Petitioner to effectuate proper service of all required documents.
- 3) In addition, Petitioner is directed to submit an Application to Determine Arrears (FL-490) along with the required Declaration of Payment History (FL-420), and a Payment History Declaration (FL-421) if any payments have been made Respondent. The Application to Determine Arrears and the supporting documents set forth above should also be filed and served prior to the next hearing.

1 4) Finally, Petitioner is directed to submit a proposed Earnings Assignment Order to the Court for
2 signature.

3 5) The Court will prepare the Findings and Order After Hearing.
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